

SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER OCCURRED ON  
THE ACTUAL DOCKET — ALL FACTS AND IDENTIFIERS ARE FICTIONAL

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

Leora Benton v. Blue Cedar Compliance, Inc.

No. SYN-CA4-26-CV-4101-CF-NEVER-OCCURRED

# **Counterfactual Order Dissolving Stay and Releasing Mandate**

## **Stay dissolved**

Entered July 15, 2026.

Blue Cedar Compliance, Inc. has notified the court that it will not file the certiorari petition described in its July 2 motion and does not oppose immediate issuance of mandate. The temporary basis for the July 6 stay has therefore ended. The court **DISSOLVES** the stay effective today. No petition for certiorari is pending, no extension has been requested, and no other order withholds mandate.

Dissolution does not modify the June 15 opinion or judgment and does not decide the merits of the proposed Supreme Court question. It restores the operative post-rehearing posture after the July 1 denial, when the mandate period had otherwise run. The affirmed exclusion ruling, vacatur of summary judgment, and remand remain exactly as stated. The clerk shall record Blue Cedar's notice and this order so that the reason for ending the previously granted stay is apparent from the docket chronology.

# Counterfactual Order Dissolving Stay and Releasing Mandate

## Mandate released

With the stay dissolved and the post-rehearing period complete, the mandate is RELEASED for issuance on July 15, 2026. The clerk shall issue and transmit the June 15 opinion and judgment today, together with a certified copy of the mandate, to the United States District Court for the Eastern District of Virginia. No additional seven-day period is imposed because this order expressly ends the stay and directs present release after the ordinary date has passed.

The clerk shall serve this order on counsel for Benton and Blue Cedar and notify the district clerk that jurisdiction returns under the mandate issued separately. This release concerns timing only. It creates no new evidentiary ruling, makes no finding on Benton's retaliation claim, and does not limit the district court's authority to conduct further proceedings consistent with the appellate opinion. The July 6 stay remains part of the docket history but has no continuing force after entry of this order.